

25STCV31371 25STCV31371

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-08
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Case Number: 25STCV31371 Hearing Date: September 8, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JORGE SANCHEZ, et al.,

Plaintiffs,

vs.

RAPPORT PROPERTY MANAGEMENT LLC, et al.,

Defendants.

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CASE NO.: 25STCV31371

[TENTATIVE] ORDER DENYING MOTION FOR PRELIMINARY
INJUNCTION

Dept. 506

8:30 a.m.

September 8, 2026

On October 28, 2025, Plaintiffs
filed this action against Defendants Rapport Property Management LLC and Normandie
Royal Terrace LLC.

On
August 5, 2026, Plaintiffs filed a motion for a preliminary injunction.

Plaintiffs'
request for judicial notice is denied as irrelevant.

DISCUSSION

"Trial
courts traditionally consider and weigh two factors in determining whether to issue
a preliminary injunction. They are (1) how
likely it is that the moving party will prevail on the merits, and (2) the relative
harm the parties will suffer in the interim due to the issuance or nonissuance of
the injunction." (Dodge, Warren &
Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) "[T]he greater the . . . showing on one, the

less must be shown on the other to support an injunction.” (Ibid., quoting *Butt v. State of California* (1992) 4 Cal.4th 668, 678.)

When

the effect of an injunction mandates a change in the parties' relationship to one another from the status quo at the time the action was filed, the injunction is considered a mandatory injunction as opposed to a prohibitory one. (*Agricultural Labor Bd. v. Superior Court* (1983) 149 Cal.App.3d 709, 713 (*Agricultural Labor Bd.*)). Preliminary mandatory injunctions rarely are granted and are reserved for extreme cases where the right is clearly established and irreparable injury will occur in the absence of the injunction. (*Board of Supervisors v. McMahon* (1990) 219 Cal.App.3d 286, 295 (*McMahon*)).

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burden of proof is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481 (*O'Connell*)). “Generally, the ruling on an application for a preliminary injunction rests in the sound discretion of the trial court. The exercise of that discretion will not be disturbed on appeal absent a showing that it has been abused.” (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286.)

A. Plaintiffs Seek a Mandatory Injunction.

According

to Plaintiffs, their tenancies used to include free parking, but after “Defendants Normandie and Rapport obtained title to and interest over the Property in November 2024, they instituted an illegal charge for parking (\$250/month).” (Motion at p. 1.) Plaintiffs ask to enjoin Defendants “from (1) charging Plaintiffs for monthly parking fees; (2) interfering with Plaintiffs' access and/or right to use the parking spots they have used in connection with their years long tenancies in the on-site garage at the Property; and to (3) preserve all evidence of prior charges and/or evidence of any payments made by Plaintiffs for parking or garage fees since November 2024.” (Ibid.)

Defendants

have been charging for parking since November 2024. The requested order would alter, rather than preserve, the status quo. Although the proposed injunction would prohibit Defendants from charging monthly fees, it is effectively an order compelling affirmative action on the part of Defendants: they must change their behavior from the status quo at the time this action was filed. (See *Agricultural Labor Bd.*, supra, 149 Cal.App. 3d at p. 713.)

“The substance of the injunction, not the form, determines whether it is mandatory or prohibitory.” (Davenport v. Blue Cross of California (1997) 52 Cal.App.4th 435, 447.) This is therefore a mandatory injunction, which requires a showing of irreparable harm. (McMahon, supra, 219 Cal.App.3d at p. 295.)

B. Plaintiffs Have Not Shown That They Will Suffer Irreparable Harm Without an Injunction.

Plaintiff

acknowledge that “one of the acts Plaintiffs ask the Court to enjoin is monetary in nature (i.e., imposition of parking charges),” but they contend that “the harms suffered by Plaintiffs are almost exclusively non-monetary” and “several Plaintiffs face exclusively non-monetary, irreparable harm because they have refused to pay the increased rent charges for parking, resulting in their inability to park in the on-site garage.” (Motion at p. 3.) “Absent an injunction, Plaintiffs face (1) the loss of housing services (access to parking) essential to their physical and mental health and safety—a service which motivated their decisions to sign lease agreements with Defendants; (2) ongoing damage to their vehicles resulting from street parking; and (3) monetary harms that disproportionately affect them as low-income tenants.” (Id. at p. 14.)

Plaintiffs

urge that “a party may be enjoined from obtaining funds to which it is not entitled, especially where the party establishes other, non-monetary irreparable harms supporting their request for injunctive relief as Plaintiffs have.” (Motion at pp. 16-17.) Plaintiffs describe their harms as “Aggravation of Documented Physical Health Issues,” “Aggravation of Mental Anguish and Stress,” “Ongoing and Future Damage to Plaintiffs’ Vehicles,” and “Monetary Damages May Lead to the Loss of Plaintiffs’ Housing.” (Id. at pp. 14-17.)

Plaintiff

Alberto Arriaga declares that “though [he] strongly disagreed with Rapport’s charging tenants for parking, [he] decided to pay for a parking permit.” (Arriaga Decl. ¶ 12.) He received three or four parking tickets when he did park on the street before paying for the permit. (Arriaga Decl. ¶ 14.) Plaintiff Mariela Berduo declares that it “is very stressful to have to pay \$250 a month for parking.” (Berduo Decl. ¶ 15.) Plaintiff Norma Banda agreed to pay for parking, but it “has a huge impact on [the family’s] budget and is not sustainable.” (Banda Decl. ¶¶ 11-13.) Paying the parking permit fee “caused [Plaintiff Yanec Martinez’s] family a tremendous amount of stress, as that amount is what [she] pay[s] for a full week of groceries for [her] family.” (Martinez Decl. ¶ 13.) Plaintiff Silvia Escalante drives less and stays

in her apartment more because it is difficult to get to her car when it is parked on the street. (Martinez Decl. ¶ 23.) Her car has also been damaged on the street. (Martinez Decl. ¶ 24.) Plaintiff Jose Escalante now pays \$165.00 a month to park his car in a parking lot several blocks away from his apartment building. (Escalante Decl. ¶ 23.)

These are exclusively monetary harms that can be remedied by refunding the permit fees and reimbursing other costs if Plaintiffs prevail. “Case law has made it clear that mere monetary loss does not constitute irreparable harm in the context of proposed injunctive relief unless there is some showing that one against whom injunctive relief is sought is insolvent or otherwise unable to respond in damages.” (Friedman v. Friedman (1993) 20 Cal.App.4th 876, 890.) Further, a plaintiff’s delay in seeking a preliminary injunction may constitute an admission of the lack of irreparable harm and a basis for denial of the application for a preliminary injunction. (O’Connell, supra, 141 Cal.App.4th at p. 1481; Lusk v. Krejci (1960) 187 Cal.App.2nd 553, 556.) Defendants began charging for parking in November 2024, and Plaintiffs did not seek this injunctive relief until August 5, 2026.

In sum, Plaintiffs have not provided any evidence that they will suffer irreparable harm in the absence of a mandatory injunction before a resolution of this action on the merits.

Even if the proposed injunction is considered prohibitory rather than mandatory, and irreparable harm is not required, “[a] party seeking injunctive relief must show the absence of an adequate remedy at law.” (Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist. (1992) 8 Cal.App.4th 1554, 1564; see Code Civ. Proc., § 526, subds. (a)(4)-(5).) Plaintiffs have not—and cannot—do so when their harms can be fully remedied by monetary damages.

CONCLUSION

The motion for preliminary injunction is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 8th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court